

25LBCV03322 25LBCV03322

County: los-angeles

Division: Civil Law and Motion

Department: S25

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Case Number: 25LBCV03322 Hearing Date: September 1, 2026 Dept: S25

Motion: Plaintiff Cynthia Brown's Motion for Order Permitting Service of Process on Defendant Infinity Property Management, Inc. through California Secretary of State

Moving Party: Plaintiff Cynthia Brown ("Plaintiff")

Responding Party: None

Tentative Ruling

Corporation Code section 1702, subdivision (a) states: "(a) If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b), or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State." (Corp. Code, § 1702 [emphasis added].)

Plaintiff has shown by affidavit that Defendant's designated agent, Jayani Manikkage, cannot with reasonable diligence be found at the address designated for personal delivery of the process. (Exs. A-O.) Plaintiff Cynthia Brown's Motion for Order Permitting Service of Process on Defendant Infinity Property Management, Inc. through California Secretary of State is GRANTED. Motion: Plaintiff Cynthia Brown's Motion for Order Permitting Service of Process on Defendant 507 Broad Ave, LLC through California Secretary of State

Moving Party: Plaintiff Cynthia Brown ("Plaintiff")

Responding Party: None

Ruling

Corporation Code section 17701.16, subdivision (c) states: "If an agent for service of process has resigned and has not been replaced or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may make an order that the service shall be made upon a domestic limited liability company or upon a registered foreign limited liability company by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State." (Corp. Code, § 17701.16 [emphasis added].)

Plaintiff has shown by affidavit that Defendant's designated agent, Malkanthi Wedage, cannot with reasonable diligence be found at the address designated for personal delivery of the process. (Exs. A-O.) Plaintiff Cynthia Brown's Motion for Order Permitting Service of Process on Defendant 507 Broad Ave, LLC through California Secretary of State is GRANTED.